

Court No. - 5

Case :- WRIT - C No. - 4123 of 2022

Petitioner :- Gudiya Devi

Respondent :- State Of U.P. Thru. Prin. Secy.
Energy Lko. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Kashyap

Counsel for Respondent :- C.S.C.,Aprajita
Bansal

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Om Prakash Tripathi,J.

A mention was made in the morning as soon as the Court assembled by the counsel for the petitioner Sri Rajesh Kumar Kashyap that the petitioner had filed a petition Writ-C No.3991 of 2022, Gudiya Devi vs. State of U.P. and others and this Court had passed an order dated 27.06.2022 disposing of the petition with the direction that for a period of six weeks and or till decision is taken on the application of the petitioner, the recovery if any in pursuance of disputed bill dated 13.06.2022 shall remain stayed. After such order was uploaded at around 5:30 p.m., the employees of the opposite party nos. 3 and 4 had visited the house the petitioner at around 6:30 p.m. and removed the electricity meter and disconnected the wires to the pole. For this action, the petitioner is praying for leave a fresh writ petition in urgency and permission be granted.

Believing the submissions made orally by the learned counsel for the petitioner, this Court had directed the petitioner to give notice to the opposite party no.3, Aprajita Bansal and it directed that the matter shall be taken up today at 1:00 p.m. When the matter has been taken up today at 1:00 pm, Ms. Aprajita Bansal appears and she has stated that she could not appear before the Court earlier because she was suffering from COVID. She stated that she had contacted the opposite party no. 3 and instructed that there is an interim order and electricity connection should not be disconnected. In pursuance of the oral instructions given by her. The electricity meter was reinstalled

and line reconnected to the electricity pole. This fact was also told by her clerk to the counsel for the petitioner in the morning itself. The Counsel for the petitioner had assured her clerk that he will not make any mention of urgency in the matter before this Court.

Believing the submissions made by the learned counsel for the petitioner in this writ petition, the office of opposite party nos.3 and 4 were again contacted by her and they had assured her that after knowledge of the order dated 27.06.2022, was derived by them through her office, they have reinstalled the meter and there was no question of the employees of the opposite party no. 2 to 4 abusing the Court as mentioned in paragraph-4 of this writ petition.

This Court has perused the pleadings on record and paragraph -4 of the writ petition is being quoted hereinbelow:

"That after the order in favour of the petitioner, the opposite parties 3 and 4 orders to their employees namely Mr. Ram Lakhan and other staff to uninstall the meter from the petitioner's house and a notice received to her daughter Nidhi on 27.06.2022 at 6:30 p.m. The petitioner's daughter Nidhi requested to employees of Electricity Department and told that Hon'ble High Court stayed all disputes/recovery regarding bill dated 13.06.2022 but the employee of electricity department abusing to the Hon'ble Justice and her and disobey the Hon'ble High Order dated 27.06.2022. Copy of the uninstalled meter receipt from the petitioner's house dated 27.06.2022 at 6:30 pm is being annexed as Annexure No.2 to this writ petition."

The deponent of this petition is husband of the petitioner and he has verified the paragraph no. 4 of the affidavit as follows :

" That the contents of paras 1, 2, 6, 7, and 8 and those of paras 3, 4, 5 the accompanying writ petition are true to my personal knowledge and those of para 9 of the same are belied by me to be true and correct on the basis of legal advice."

When the counsel for the petitioner was questioned by this Court as to how paragraph-4 has been verified on the basis of personal knowledge, as the deponent had stated that he was not present and only his daughter was present

in the house when the employees of the opposite party no. 2 to 4 had gone for disconnection for line on 27.06.2022 at 6:30 p.m. at the house of the petitioner. The counsel for the petitioner says initially that petitioner's daughter Nidhi had come to the Chamber in the High Court along with her father and on the basis of statement made by her, such verification was done on 27.06.2022 in the evening. On further questioning, the counsel for the petitioner states that the drafting of the affidavit had been done out of inadvertence and he should have mentioned that the contents of paragraph-4 are to be true on the basis of knowledge derived and believed to be true and not on personal knowledge.

With regard to merits of this petition, the learned counsel for the petitioner still insists that permanent disconnection has been carried out in violation of the order passed by this Court on 27.06.2022.

This Court has perused the order dated 27.06.2022, a copy of which has been annexed as Annexure-1 to the writ petition. This Court had directed the petitioner to approach the Competent Authority by filing an application under paragraph-6.5(b) of the Electricity Supply Code, 2005 within a period of two weeks and the Competent Authority to consider the same within a further period of three weeks thereafter. It had also directed that for a period of six weeks or till a decision is taken on the application of the petitioner, recovery if any in pursuance of disputed bill dated 13.06.2022 shall remain stayed.

There is no direction by this Court in its order dated 27.06.2022 that electricity line to the house of the petitioner should not be disconnected, only recovery proceedings have been stayed with effect disputed bill of Rs.1,26,731/-.

This petition is dismissed as abuse of process of this Court.

Order Date :- 1.7.2022

Monika